

JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT
JUDGMENT

W.P.No.88-R-2013.

Agha Muzammal Khan
(deceased) through his legal
heirs etc.

VS.

Member Board of Revenue /
Chief Settlement Commissioner
etc.

Date of hearing : 22.11.2021, 23.11.2021, 24.11.2021, 25.11.2021 & 26.11.2021.

Petitioners by : M/s. Malik Muhammad Nadeem, Syed Zeeshan Haider Zaidi, Abdul Razzaq Younas and Raja Hasnat Ahmad Khan, Advocates
Iqbal Ahmad Khan, Advocate for the petitioner in W.P.No.35 & 36-R-2014 and applicant in C.M.No.946-2014 in W.P.No.88-R-2013.
Mr.Adil Aftab Kashmiri, Advocate for the petitioner in W.P.No.69-R-2014.

Respondents by : Mr. Gohar Nawaz Sandhu, Assistant Advocate General
Mr. Waseem Iqbal Butt and Ch. Muhammad Boota, Advocates for Settlement Department.

Ch. Muhammad Iqbal, J:- Through this single judgment, I intend to decide the titled Writ Petition No.88-R/2013 as well as Writ Petition No.89-R/2013, Writ Petition No.35-R/2014, Writ Petition No.36-R/2014 and Writ Petition No.69-R/2015, as common questions of law and facts are involved in these case.

2. Brief facts as contained in these petitions are that predecessor-in-interest of the petitioners namely Anwar Khan alongwith Nawab Din and Fazal Din sons of Allah Din, Wajid Ali (s/o Dr. Meraj Din), Dr. Meraj Din and Siraj Din both sons of Amir Din, as well as Muhammad Shafi s/o Muhammad Din claimed to be alleged owners in possession of agricultural land measuring 362 Ghumaons [detail whereof is given in W.P.No.6329 of 2000,] bearing Khasra Nos.243, 244, 246 to 251,

258, 259, 320 to 323, 323/1, 324/1, 324 to 344, 349, 351, 353 to 356, 375, 377 to 406, 408, 409, 426, 433 to 436, 433, 455 to 458, 464, 471, 472, 474 to 487, 493, 395, 498, 502, 515, 518, 518/1, 519/2, 519 to 521, 523 to 526, 528, 529, 531 to 539, 542, 543/1, 543 to 545, 549, 553, 556, 557, 560 to 562, 565, 566, 567, 574 to 578, 585, 592, 594, 598, 599 to 601, 603, 604, 616, 619 to 622, 638 to 643, 652 to 655, 661 to 666, 694/1, 698, 699 to 703, 709 to 714, 723 to 728, 730 to 734, 737 to 744, 746 to 768, 755, 765 to 767, 769, 771, 789, 794, 807 to 810, 828, 842, 843, 847 to 849, 852 to 1004, 1121, 1228 to 1240 situated in village Rai as well as land measuring 62 Ghumaons comprising Khasra No.5266, 268 to 288 to 295, 336, 354, 356, 421, 444, 461, 305 to 313, 316 to 321, 332 to 338, 345/1, 346/1 to 355, 419 to 437, 532 to 554, 559 situated in village Rakhh Rai and also 1/1/8 storied Haveli on the basis of agreement to sell dated 04.07.1947 with Indar Singh. They filed an application on 05.11.1948 for making award as rule of the court which application was accepted and award was made rule of the court vide judgment and decree dated 26.11.1948 on the statement of alleged special attorney of Inder Singh and sale certificate (Sanad Sultan) No.229-1 dated 15.02.1949 was issued in their favour. That this sale transaction was allegedly acknowledged by the Deputy Custodian vide the order on 17.01.1951 and Custodian Evacuee Property also confirmed the sale transaction vide order dated 22.12.1956. That the above sale transaction was statedly given effect in the Revenue Record vide mutation No.198 dated 09.07.1956 and the same was also reflected in periodical record (Jama Bandi) for the year 1959-60.

That after the death (murder) of Anwar Khan in year 1951 one of his legal heirs came to know in the year 1998 from his relative that his father Anwar Khan was owner of immovable properties in Mauza Rai, Lahore. After inquiry, the sale deeds came to his knowledge and on the basis of said sale deed, he

contacted Halqa Patwari through an application to correct the entries of the Record accordingly and incorporate their names in the revenue record. Simultaneously he also filed an application in this regard to the Collector (Consolidation) but no response was given. Then the petitioners approached the Chief Settlement Commissioner for redressal of their grievance. On the direction of Chief Settlement Commissioner, the Consolidation Department gave information that in 1962, the record of Moza Rai was stolen, whereafter the name of the petitioner's predecessor-in-interest was disappeared from the revenue record. Thereafter, the petitioners came to know the mutation No.198 on 09.07.1956. The Patwari Halqa issued a copy of *Jamabandi* for the year 1959-60 which shows the name of predecessor-in-interest of the petitioners in the revenue record but later on no entry was made or available in the revenue record.

The petitioners then instituted Writ Petition No.6329/2000 with the prayer to direct the revenue hierarchy to correct the entries of the revenue record. During pendency of the above petition the Consolidation Officer sanctioned mutation No.2024 on 26.04.2000 in favour of the petitioners, whereafter the above mentioned writ petition was disposed of on 27.04.2000 with the direction to the respondents to attest the mutation of remaining portion of land in favour of the petitioner. The above order dated 27.04.2000 of this Court, was challenged by Mst. Shamim Firdous etc. in petition under Section 12(2) C.P.C. which was accepted by this Court, earlier order was recalled and the writ petition was dismissed on 22.12.2004. The petitioners challenged the above dismissal order in Intra Court Appeal [No.30/2005] which was dismissed. Being dejected with above orders, the petitioner filed Civil Petition [No.1875 of 2005] which was disposed of by the Hon'ble Supreme Court of Pakistan on 12.02.2008 and the case was remanded to this Court for decision

afresh. After remand, the hearing of the W.P.No.6329-2000 was entrusted to this Court.

Before institution of the above *lis* in the year 2000, one Ali Muhammad & others filed application for the allotment of the evacuee land in Mauza Rai and also filed Writ Petition No.152-R/1998 and vide order dated 15.03.2001 a direction was passed to the Chief Settlement Commissioner to decide the case. Besides above *lis* one Akram Javed also filed application asserting therein that Agha Muzammil etc. fraudulently obtained a huge chunk of evacuee land in Mauza Rai through forged and fabricated documents and had also got sanctioned mutation on the basis thereof, upon which the Member (Judicial-V), Board of Revenue / Chief Settlement Commissioner / Administrator (Residual Properties) / Notified Officer, Punjab got conducted scrutiny of the record as well as obtained report from the Revenue field staff and after affording hearing to the concerned parties, cancelled the mutation Nos.2023, 2004, 2036, 2037 etc. declaring the mutations as bogus, fabricated, based on fraud and misrepresentation. He also rejected the application of Haji Akbar Ali etc. for allotment of the said land against their evacuee claim of pending PIU Units vide order dated 05.12.2013. The petitioners challenged the above order (05.12.2013) through filing W.P.No.88 & 89-R-2013 as well as W.P No.69-R-2015

3. I have heard the arguments of learned counsels for the parties and have gone through the record with their able assistance.

4. As per the available record, the entire controversy centers around the pivotal point that whether the land in question is an evacuee or non-evacuee property. Before marching toward the factual aspect of the matter it is appropriate to shed light in the relevant law in the subject. As an ultimate resolve of untiring

consecutive, continuous hectic painful endeavor / struggle for liberation, the Muslim community of India adopted a unanimous, decision and passed Resolution on 23rd of March, 1940 for an independent Muslim State and as a result whereof, the partition of sub-continent took place through promulgation of Independence Act, 1947 dated 18.07.1947 whereby Pakistan came into being and territories of the respective domains of both countries (Pakistan & India) were also exhaustively described.

After creation of a new Islamic State of Pakistan a wide spread unrest arose in Hindu, Muslim & Sikh Communities living in India which resulted into evacuation exodus of the above communities toward the selected destination of their choice country. Almost majority of Hindu and Sikh communities abandoning the estate in Pakistan migrated to India for their permanent abodes and similarly a large scale Muslim Community also migrated from India to Pakistan. Then the Government of Pakistan in order to protect, safeguard and preserve the evacuee land from mischief fraudsters and unwarranted alienation of the evacuee land, promulgated a law on 5th September in 1947, whereby an Authority of Custodian was established and jurisdiction with regard to the evacuee land, management, resumption, taking possession etc. was bestowed to Custodian and every transaction of evacuee land was subjected to mandatory permissive certificate of the said Authority. It is appropriate that from which date the property/ land of a migrate shall be treated as an evacuee land, suffice it to say that any evacuee who is missing or not known from 28th day of February, 1947, his land would be fall in the term of evacuee property. In this regard Section 7 of Pakistan (Administration of Evacuee Property) Ordinance (XV of 1949) reads as under:-

Section 7. Holding of evacuee property and its surrender.—(1) Every person who is, or has at any time after the twenty-eighth day of February, 1947, been in

possession, supervision or management of any evacuee property, shall be deemed to hold or to have held, as the case may be, such property on behalf of the Custodian.

(2) Every person who is in possession, supervision or management of any evacuee property or property which he knows or has reason to believe is evacuee property shall, as soon as may be but not later than sixty days from the commencement of this Ordinance, intimate to the Custodian in writing his willingness to surrender such property to the Custodian or to any person authorised by the Custodian in this behalf upon receipt of a notice from the Custodian that the property is evacuee property, and shall surrender the same if called upon by the Custodian or any person authorised as aforesaid.

The term “evacuee” and “evacuee properties” are legally defined through legislation as under:

Pakistan (Protection of Evacuee Property) Ordinance, 1948 (XVIII of 1948).

Section 2: Definitions. (a).....

(b) “evacuee” means any person who by reason of the disturbances arising out of the setting up of the Dominions of Pakistan and India, has been or is absenting himself from Pakistan and whose property in Pakistan is for the aforesaid reason not personally occupied, supervised or kept by him or whose business or undertaking in Pakistan has for the aforesaid reason ceased whether wholly or partially to be carried on or is being carried on by an unauthorised person :

Pakistan (Administration of Evacuee Property) (Amendment) Act, 1951 (VI of 1951)

Section (2) “evacuee” means any person(a) who, on account of the setting up of the Dominions of Pakistan and India, or on account of civil disturbances or the fear of such disturbances, on or after the first day of March 1947, leaves or has left any place in the territories now comprising Pakistan for any place outside those territories;

Pakistan (Adminstration of Evacuee Property) (Second) Ordinance, 1956. (XX of 1956.)

Section (2) evacuee means any person--

(a) who, on account of the setting up of the Dominions of Pakistan and India, or on account of civil disturbances or

the fear of such disturbances, on or after the first day of March 1947, leaves or has left any place in the territories now comprising Pakistan for any place outside those territories;

Further with regard to alienation of the evacuee property a complete embargo was placed through Section 15 and 16 of the Ordinance *ibid* (XV of 1949), which is reproduced as under:-

Section 15. Prohibition of transfers of property generally.—The Central Government may, by notification in the Official Gazette, declare that in such area and for such period as may be specified in the notification, the transfer of any property or class of property, or the creation of any right or interest therein or encumbrance thereon, shall be prohibited, and where any such declaration has been made, no such transfer or creation shall be made during the period in the area except with the previous approval in writing of the Custodian:

Provided that nothing in this section shall prevent the transfer of movable property of which an evacuee has immediate physical possession.

Section 16. Restriction on transfer by evacuees.—(1) No creation or transfer of any right or interest in or encumbrance upon any property made in any manner whatever by an evacuee or by any person in anticipation of his becoming an evacuee or on behalf of the evacuee or such person on or after the first day of March, 1947 shall be effective so as to confer any right or remedy on any party thereto or on any person claiming under any such party unless such creation or transfer is confirmed by the Custodian.

In addition to above, under Section 3 of the Pakistan Evacuee Properties Ordinance, 1949, the alienation of the evacuee property was barred. The provision of Section 3 *ibid* is reproduced as under:-

3. *Prohibition of dealings relating to immovable evacuee property* ---Notwithstanding anything contained in any other law for the time being in force,---

(a) no proposal for the sale, mortgage, lease, exchange or other dealing relating to any immovable evacuee property shall be made and no such proposal made before the coming into force of this

Ordinance shall be accepted and no agreement relating to any such dealing shall be entered into or made;

(b) no agreement made before the coming into force of this Ordinance in respect of sale, mortgage, lease, exchange or other dealing relating to any immovable evacuee property shall be performed and no deed or other instrument in performance of any such agreement shall be executed or registered nor shall any such agreement be completed in any other manner.

And similarly the above restrictions were re-enforced under Section 20 of the Pakistan (Administration of Evacuee Property) Act, 1957 (XII of 1957) whereby ban was imposed that after 01.03.1947 no transaction of sale/ purchase of the evacuee land could be entered into between evacuee and the local residents.

The provision of Section 20 of the Act *ibid* is as under:-

“20. Restriction on transfer by evacuee. (1) No creation or transfer of any right or interest in or encumbrance upon any property made in any manner whatsoever on or after the first day of March, 1947, by or on behalf of an evacuees, or by or on behalf of a person who has become an evacuee after the date of such creation or transfer, shall be effective so as to confer any right or remedy on any party thereto or on any person claiming under any such party, unless it is confirmed by the Custodian.

Further through notification dated 03.03.1948 no transaction of sale / purchase regarding the evacuee properties / land could be made without prior approval of the Custodian of the Evacuee Properties.

So far as Section 11 of the West Punjab Protection of Evacuee Property Act, 1948 (VII of 1948) and Section 34 of the Pakistan (Administration of Evacuee Property Ordinance (XV of 1949) the jurisdiction of the civil court to deal with the issue relating to the evacuee land was completely barred. The said provisions are as under:-

West Punjab Protection of Evacuee Property Act, 1948
(VII of 1948)

Section 11. No Court shall entertain or adjudicate on a claim in any suit, appeal, execution application or other proceedings as to what interest, if any, an evacuee has in such property except in the case of a claimant who has been referred to the civil court under Section 17 of the Act for establishment of his title.

Pakistan (Administration of Evacuee Property)
Ordinance (XV of 1949)

Section 34. Jurisdiction of Courts barred.—Save as expressly provided in this Ordinance, no civil or revenue Court shall have jurisdiction.

(a) to entertain or adjudicate upon any question arising in any suit, appeal, application or other proceeding as to whether any property is or is not evacuee property, or whether an evacuee has or has not any right or interest in any such property, or

(b) to question the legality of anything done under this Ordinance by or at the instance of the Custodian, or

(c) in respect of any matter which the Custodian is empowered by or under this Ordinance to determine.

(2) Whenever any question such as is referred to in clause (a) of sub-section (1) arises in any civil or revenue Court, the Court shall state the question with relevant particulars and remit it to the Custodian for decision, and shall adjourn the proceedings in which the question arises until the decision of the Custodian is given, and the decision of the Custodian on the question stated shall be conclusive.

(3) No decision of any Court on any question such as is referred to in clause (a) of subsection (1), given between the fourteenth day of August 1947, and the commencement of this Ordinance, shall be binding on the Custodian, or affect any right or interest of any evacuee in any property affected by such decision.

(4) No Court shall be competent to grant an injunction or other order in relation to any proceeding before the Custodian under this Ordinance or anything done or intended to be done by or at the instance of the Custodian under this Ordinance.

(5) No Court shall be competent to grant relief against extinguishment, forfeiture or penalty to a person whose right to any immovable property is or has been extinguished or forfeited in accordance with the terms and conditions of any agreement or grant relating to such property and who at the time of the extinguishment or forfeiture of such right is or was an evacuee.

Thus, all the lands / properties abandoned by the evacuee in Pakistan became evacuee land/property w.e.f. 01.03.1947 which stood vested with the Custodian/the Central Government and same could not be alienated without prior approval of the Custodian. Furthermore, the jurisdiction of Civil Court was barred in such matters.

5. Now adverting to the lis in hand that Anwar predecessor of the petitioner allegedly entered into agreement to sell with an evacuee Inder Singh qua the land in question on 07.04.1947. Said Inder Singh migrated to India. The purchaser of the land Anwar and Wajid etc. sent legal Notice to Inder Singh for performance of the agreement. After one year and one month of the partition of sub-continent and creation of Pakistan, Wajid Ali etc. got issued a legal public notice [published in “The Civil & Military Gazette, Saturday September 18, 1948” (*available in documents submitted in written arguments as “Book-1” by the petitioners*)] through their counsel to Inder Singh (who had already permanently migrated to India) asking him to execute the sale deed within one week in favour of Wajid Ali etc. For reference, the aforesaid notice is reproduced as under:

“Notice to Inder Singh, son of Kesar Singh, caste Jat, resident of Rahianwala, District Lahore , by Wajid Ali etc. resident of Lahore. I, hereby give you a notice to complete sale of land situated at Raiwala, District Lahore, per agreement dated 7th April, 1947, within a week from the date of publication of the notice otherwise you shall be deemed to have refused the performance of the contract and a suit shall be brought against you after the expiry of period of the notice and you shall be responsible for the cost.

Sh. Abdul Rashid, B.A., LL.B.
Advocate,
High Court, Lahore
29-A Temple Road, Lahore.

After issuance of proclamation / notice, one Syed Rajab Ali Shah posing himself as attorney of said Inder Singh showed his consent for appointment of Arbitrator, thus Syed Muhammad Shah was appointed as sole arbitrator by the parties. The said attorney made a conceding statement in Arbitration proceedings showing no objection for issuance of award as prayed for in favour of the vendees.

6. Agha Muzammal Khan etc. claimed ownership of the said land on the basis of alleged agreement to sell dated 07.04.1947 as well as alleged decree of the civil court dated 26.11.1948, but divergent to the above assertions one Haji Ali

Akbar etc. filed a Writ Petition No.152-R/1998 challenging therein the alleged allotments of the evacuee land to various persons in Mouza Rai. This Court, vide order dated 15.06.2001, remitted the matter to the Chief Settlement Commissioner / Administrator (Residual Properties) / Notified Officer, Board of Revenue Punjab to decide the issue in accordance with law. During scrutiny process of the record, it revealed that Agha Muzammal Khan and others, on the basis of alleged decree dated 26.11.1948 of the learned Civil Court, obtained evacuee land by taking the stance that evacuee Inder Singh S/o Kaiser Singh was owner of land measuring 362 Ghumaons in village Rai and land measuring 52 Ghumaons in Village Rakh Rai as well as 1/1/8 storeyed Mansion (*haveli*) in village Rai Wala. That Anwar Khan predecessor in interest of petitioner Agha Muzammal Khan etc. purchased the aforementioned land from the said Inder Singh through alleged agreement to sell dated 07.04.1947. But the said Inder Singh had migrated to India before partition which factum has been disclosed by the alleged attorney, thus the publication of notice dated 18.09.1948 and appointment of special attorney were manipulated after the migration of the principal / owner to India, as such the said proceedings were patently based on misrepresentation, fraud and in violation of the Notification dated 03.03.1948, as well as Section 3 of the Pakistan Evacuee Properties Ordinance, 1949 and Section 20 of the Pakistan (Administration of Evacuee Property) Act, 1957 (*supra*). It is apparent from the record that at the relevant point of time, the land / properties of Inder Singh had already obtained status of evacuee properties; same stood vested/ transferred in favour of the Central Government / Custodian and Inder Singh was no more absolute owner of the said land to alienate the same and his alleged attorney was also devoid of competence to make any conceding statement on behalf of an absentee evacuee owner

before the Arbitrator or the Civil Court, as such any statement of the attorney without backing of explicit legal authorization of the principal, garners no validity in the eyes of law. Thus the statement of Special Attorney Syed Rajab Ali Shah on 27.10.1948 stood neutralized by operation of law as he was not competent to make any conceding statement on behalf of a non existent principal, as such, any alleged statement of special attorney on behalf of principal (Inder Singh) wears no sanctity in the eyes of law and any superstructure built on said statement that would stands dismantled automatically. The above facts demonstrate that the alleged award and decree of the Civil Court dated 26.11.1948 were obtained by the predecessor of the petitioners through collusivity, misrepresentation and fraud.

7. The Notified Officer, while deciding the matter in issue, sought report from the learned Senior Civil Judge regarding the aforementioned alleged suit as well as the decision whereof. In response thereto the concerned Record Keeper of Sessions Court, Lahore submitted reports on 26.01.2002 and 01.04.2009 stating therein that neither the arbitration application/ suit nor the alleged judgment & decree dated 26.11.1948 titled as *Nawab Din etc. Vs. Inder Singh* was found entered in concerned register nor the said record is available in the Record Room whereas the other entries of institution of suit/ application and decision of the other cases w.e.f. 01.01.1948 to 31.12.1950 were found available in the record. Thus the above alleged award and decree of the civil court are non-existent. The said report of Record Keeper is reproduced as under:-

جناب عالی گزارش ہے کہ اصل موقع / مشاجرات / بستہ اور رجسٹر اندراج میں بھی تلاش کیا گیا مگر
عنوان بالا نواب دین وغیرہ بنام اندرسنگھ مورخہ 26.11.1948 رجسٹر میں اس عنوان کا مقدمہ
نہ پایا جاتا ہے۔

جناب عالی رجسٹر میں مورخہ 1.1.1948 سے لے کر 31.12.1950 تک اس عنوان کا کوئی
مقدمہ درج نہ ہے۔ تمام رجسٹر اندراج اخراج میں ملاحظہ کیا گیا مگر کوئی فیصلہ عنوان بالا کا نہ پایا جاتا

ہے۔ جناب عالی بعد االت جناب ڈی فضل دین سینئر سب جج لاہور نے دیگر مقدمات فیصلہ شدہ رجسٹر اندراج میں درج ہیں مگر اس عنوان جملہ نواب دین وغیرہ نام اندر سنگھ مورخہ درج نہ ہے۔
لہذا رپورٹ عرض ہے۔

دستخط

ریٹائرڈ ریکارڈ کیپر سیشن کورٹ لاہور۔

Furthermore, the alleged copy of decree (non-existent) available in the file transpires that the said decree was passed regarding Moza Rakh Rai and it was not regarding the land of Moza Rai whereas both the villages (Moza Jat) have altogether different independent entity, location and revenue estates. But the predecessor of the petitioners with collusiveness of the revenue field staff got sanctioned the mutation No.198 in the year 1956 of Moza Rai beyond the dictates of the alleged decree. Thus it evinces from the record that the petitioners fraudulently obtained the evacuee land under the garb of Arbitration Award and decree of the Civil Court. Thus, the same had no sanctity and validity in the eyes of law. It is the claim of the petitioners that their predecessor obtained permission from the custodian of the evacuee land with regard to the sale transaction of land with Inder Singh through letter dated 27.12.1956 but no proceedings in this behalf have been placed on the record to substantiate the assertions. Even otherwise, as per report of the Incharge Central Record Room no permission was obtained from the Custodian, as such the alleged order of the Deputy Custodian dated 17.01.1951 and that of the Custodian Evacuee Properties dated 22.12.1956 are non-existent whereas the petitioner has not produced any document to controvert the report of the Record Keeper of the Central Record Room.

Even otherwise, as per report of Record Keeper of the Sessions Court as well as the report of the Central Record, the proceedings of arbitration and civil suit as well as the

proceedings before the Custodian are non-existent in the aforesaid departments, thus it was duty of the petitioner to substantiate the genuity / validity of the agreement, arbitration award/ arbitration proceedings, decree of the civil Court, as well as the proceedings before the Custodian but no such validation certificate of arbitration award, trial court proceedings as well as proceedings before the Custodian is available with record of these petitions whereas the above reports against the petitioners are still in field and same had never been controverted through any believable, trustworthy documentary evidence which in itself demonstrate the existence of fraud in the transaction. Moreover, as the petitioner claim ownership of the land on the basis of agreement to sell as well as the decree of the court (which is non-existent), whereas many other evacuee claimant were also allegedly holding allotment orders of the land in question. Thus Government, after scrutiny confiscated the entire land and resumed the same in favour of the state vide mutation No.571 dated 02.12.1975 and this resumption order was not challenged any more.

Besides above it is important to mention here that the Khasra Numbers mentioned in the alleged agreement to sell and that those written in the decree were changed during the consolidation operation but at the time of sanction of the alleged mutations No.2024, 2036 and 2037, the *khasra* numbers were not mentioned as per new consolidation scheme, thus the consolidation officer was not competent to enter and sanction the mutations as the entire consolidation process was set at naught and consolidation officer was denuded of any legal authority to sanction any mutation without prior permission of the competent authority. Further through mutation No.2023 the land in question was also resumed in favour of the state but no power was granted to revenue officer to sanction mutation No.2024 etc. in favour of

the petitioners (Agha Muzammal Khan and others) without obtaining approval from the competent authority.

8. It is worth mentioning here that admittedly a complete embargo was placed on the alienation of all evacuee properties w.e.f 01.03.1947 and land of the evacuee stood vest with custodian of evacuee properties and thus Central Government was a necessary party to every suit, appeal, execution or arbitration proceedings as per Section 79 read with Order XXVII CPC, whereas the record appended with the petition does not demonstrate that in the arbitration proceeding instituted on 18.09.1948, the Custodian or the Central Government was arrayed as party thus all the alleged proceedings were got finalized in absentia of the necessary parties which proceedings in its entirety were void ab-initio. It is settled law that in the absence of a necessary party, no effective decree or order can be passed. Reliance in this regard is placed on a recent judgment rendered by the Hon'ble Supreme Court of Pakistan in a case titled as Province of Punjab through Secretary Excise & Taxation Department, Lahore & Others Vs. Murree Brewery Company Ltd (MBCL) & Another (2021 SCMR 305) wherein it has been held that:

14. Therefore, the legislative intent and the purpose of the operation of this provision is for the State, or the Province, to be adequately represented and defended through the impleadment of the proper department. This purpose cannot be achieved if the concerned and proper department is not made a party to the suit, nor can it be achieved if the State, or Province, are not named in the suit.

15. This Court, in previous matters before it, has held that S.79 of CPC is a mandatory provision where the State, or the Province, was either not impleaded in compliance with S.79 of the CPC, and Article 174 of the Constitution, or the concerned department was not made party to the suit. Reference can be made to the cases of *Province of the Punjab through Member Board of Revenue (Residual Properties) v. Muhammad Hussain, Haji Abdul Aziz v. Government of Balochistan through Deputy Commissioner, Khuzdar, and Government of Balochistan, CWPP&H Department and others v. Nawabzada Mir Tariq Hussain Khan Magsi*.

Furthermore, the Hon'ble Apex Court in the judgment (supra) has also held that if the Government is not made party under Section 79 C.P.C, that flaw renders the proceedings of suit/lis as invalid. For ready reference, relevant portion of the judgment (supra) is reproduced as under:

16. The general rule regarding the mandatory nature of S.79 of the CPC and Article 174 of the Constitution was explained in the Indian Supreme Court case of Chief Conservator of Forests, Govt. of A.P. v. The Collector:

“It is not merely a procedural formality but is essentially a matter of substance and considerable significance. That is why there are special provisions in the Constitution and the Code of Civil Procedure as to how the Central Government or the Government of a State may sue or be sued. So also, there are special provisions in regard to other juristic persons specifying as to how they can sue or be sued.”

This Court also held in the case of Government of Balochistan, CWPP&H Department and others v. Nawabzada Mir Tariq Hussain Khan Magsi that non-compliance of a mandatory provision would render the suit invalid as reproduced below:

“Due to non-compliance of the mandatory provisions as enumerated in section 79, C.P.C. and Article 174 of the Constitution of Islamic Republic of Pakistan, a suit against the functionary only is not maintainable as has been done in this case”

17. In light of what has been discussed above, as a matter of general principle, S.79 of the CPC is a mandatory provision to the extent where the Government is wrongly impleaded or the concerned and proper department is not made party to the suit. Such actions will render the suit invalid. However, it does not close the right of the person filing the proceeding to file the case afresh, subject to limitation, by impleading the correct Respondents in accordance with the provisions of S.79 of the CPC.

Reliance is also placed on the cases titled as Mst. Maqbool Begum etc. Vs. Gullan & Others (PLD 1982 SC 46), Province of the Punjab through Member Board of Revenue (Residual Properties), Lahore & Others Vs. Muhammad Hussain through LRs & Others (PLD 1993 SC 147), Dr. Saleem Javed & Others Vs. Mst. Fauzia Nasim & Others (2003 SCMR 965) and

Government of Balochistan, CWPP&H Department & Others Vs. Nawabzada Mir Tariq Hussain Khan Magsi & Others (2010 SCMR 115) & Muhammad Siddique (Deceased) through L.Rs. and others Vs. Mst. Noor Bibi (Deceased) through L.Rs. and others (2020 SCMR 483).

9. There is another significant aspect of the matter that a visible unholy haste is shown in finalization of the arbitration proceedings, issuance of award and decree of the civil Court, as the same were obtained only on a shortest span of time which suggest the existence of lurking mischief of fraud in the proceedings. It is settled law that fraud vitiates the most solemn proceedings and any edifice so raised on the basis of such fraudulent transaction, that stand automatically dismantled and any ill-gotten gain achieved by fraudster cannot be validated under any norms of laws. Reliance in this regard is placed on Muhammad Attique v. Jami Limited and others (PLD 2010 SC 993), Khursheed Begum and others v. Inam-ur-Rehman Khan and others (PLD 2009 Lahore 552), Nawab Syed Raunaq Ali etc. Vs. Chief Settlement Commissioner & Others (PLD 1973 SC 236), The Chief Settlement Commissioner, Lahore Vs. Raja Muhammad Fazil Khan and others (PLD 1975 SC 331) and Lahore Development Authority Vs. Firdous Steel Mills (Pvt.) Limited (2010 SCMR 1097).

10. Besides above petitioner's entire case is hinged upon the agreement to sell, award of the arbitrator and the decree of the civil court dated 26.11.1948 whereas under Section 3 of the Evacuee Property Act, 1949 read with Section 20 of the Act, 1957 *ibid* a complete embargo was imposed on the transaction or alienation of the evacuee land/ properties w.e.f 01.03.1947 but despite the legal injunction petitioner entered into an alleged agreement to sell dated 07.04.1947 with an absentee evacuee. Thus the very agreement in its entirety was against the law and such

agreement is treated as void *ab initio* which void agreement/ contract are not enforceable as described in Section 2(g) and 2(J) as well as Section 23 alongwith illustration (e) thereto & Section 24 of the Contract Act, 1872, which are as under:-

2(g) *An agreement not enforceable by law is said to be void; ...*

(j) *A contract which ceases to be enforceable by law becomes void when it ceases to be enforceable.*

23. What consideration and objects are lawful and what not.—The consideration or object of an agreement is lawful, unless--- it is forbidden by law or.

Is of such a nature that, if permitted, it would defeat the provisions of any law; or

Is fraudulent; or

Involves or implies injury to the person or property of another;

Or the Court regards it as immoral or opposed to public policy.

In each of these cases, the consideration or object of an agreement is said to be unlawful. Every agreement of which the object or consideration is unlawful is void."

Illustration (e). A, B and C enter into an agreement for the division among them of gains acquired, or to be acquired, by them by fraud. The agreement is void as its objection is unlawful.

24. Agreement void, if considerations and objects unlawful in part.---If any part of a single consideration for one or more objections, or any one or any part of any one of several considerations for a single object is unlawful, the agreement is void.

As such any agreement violation to the provisions of statutory law or policy is void and the same is not enforceable under Section 42 of the Specific Relief Act. Reliance in this behalf is placed upon cases cited as Manzoor Hussain and others Vs. Wali Muhammad and another (PLD 1962 Karachi 877), Yousaf Ali V. Muhammad Aslam Zia (PLD 1958 SC 104), Abdul Razzak Vs. Karachi Development Authority (1991 CLC 1591), Citibank through Attorney Vs. District Registrar / District Collector/ Deputy Commissioner, Lahore and another (1999 MLD 1101),

and Abdul Jabbar Vs. Member Judicial (VII) Board of Revenue and others (2019 CLC 394).

11. Much emphasis is laid on the want of jurisdiction of the CSC/Notified Officer/Custodian of residual properties after repeal of the evacuee law in 1975, suffice it to say that it has already been observed in the preceding paragraph that the alleged agreement dated 07.04.1947, appointment of alleged special attorney, conceding statement of the said attorney, any arbitration proceedings as well as the decree (non-existent) of the civil court dated 26.11.1948, whereby a huge chunk of evacuee land was allegedly got mutated by the petitioners in their names, strongly demonstrates the existence of fabrication, manipulation, falsity, visible fraud, misrepresentation and against the statutory provisions of law. It is settled law that any evacuee land obtained by committing misrepresentation of the facts and fraud in that eventuality, the Chief Settlement Commissioner being successor of Custodian of the evacuee property has jurisdiction to initiate inquiry or take cognizance of the matter regarding transfer of the evacuee land. The issue of jurisdiction of the Chief Settlement Commissioner/Notified Officer has been settled by the Hon'ble Supreme Court of Pakistan in a recent judgment reported as Messrs Beach Luxury Hotels, Karachi Vs. Messrs Anas Muneer Ltd and others (2016 SCMR 222) wherein it is observed that when a matter of alienation of evacuee land is re-opened, the Settlement Authority has the jurisdiction to re-examine all the facts pertaining to the title of the parties from the very inception of claim and to decide the matter according to available record as per law. In another judgment cited as Virasat Ullah Versus Bashir Ahmad, Settlement Commissioner (Industries) and another (1969 SCMR 154), the Hon'ble Supreme Court of Pakistan has observed as under:-

“We are unable to see any point in this leave petition except the uneasiness on the part of the petitioner to undo the notice issued to him by the Settlement Commissioner which merely required that the petitioner should disclose his credential as the transferee of the property in dispute. The leaned Single Judge has directed that the entitlement of the petitioner should be duly examined and we see no apparent reason why the petitioner wants to avoid this examination. The grievance of the petitioner at this stage is baseless and premature. This petition is dismissed.”

(emphasis supplied)

The above said view has been reiterated in case reported as Chief Settlement Commissioner, Lahore V. Raja Muhammad Fazil Khan and others (PLD 1975 SC 331) and Muhammad Siddique Vs M.B.R/C.S.C, Punjab and others (2017 MLD 572). Further Section 21 of the General Clauses Act, 1897 confers an inherent jurisdiction to an authority itself or its successor authority which has passed the order to reverse the erroneous or illegal order earlier passed by it. Similarly if any benefit has been obtained from authority by practicing misrepresentation or fraud, the same forum is vested with inbuilt jurisdiction to undo the wrong. In this regard the Hon’ble Supreme Court of Pakistan in a case titled as Muhammad Baran and others Vs. Member (Settlement and Rehabilitation) Board of Revenue Punjab and others (PLD 1991 SC 691) has held that if any order is obtained by the authorities through misrepresentation, fraud and forgery, in that eventuality the same authority can undo such illegal order either on its own motion or on the information received to it through application. In the case of obtaining evacuee land through fraud, the settlement authority may reverse such order of alienation and in such like matter, the superior Courts can withheld the exercise of their discretionary writ jurisdiction to annul the order of authority, even though it was clearly without jurisdiction. Relevant portion of the said judgment (supra) is reproduced as under:-

“Putting this observation in juxtaposition to the present case; if the allotments relied upon by the appellants made by the Settlement functionaries were illegal and without jurisdiction and indeed if they

were also based on fraud and forgery, in that eventuality even if the Board of Revenue which exposed fraud and forgery and set aside illegal transfer of properties worth millions by its own order, the High Court would not in exercise of its discretionary (Writ) jurisdiction annul the order of the Board of Revenue, even though, to borrow the language used in the case of Raunaq Ali the latter “was clearly without jurisdiction.”

Further, in another judgment reported as Shamrooz Khan Vs. Muhabbat Khan and another (1989 SCMR 819), the Hon’ble Apex Court held that the Settlement Authorities have jurisdiction to issue notices on the complaint wherein it reveals that the order of transfer of evacuee land was procured on the basis of fraud and non-existent documents. The relevant portion of the judgment (supra) is reproduced as under:-

“The jurisdiction of the Tribunal or the Deputy Settlement Commissioner in this case to examine the question of forgery and fabrication in his own record has been upheld by the learned Judge in the High Court and it follows from our decision in the Chief Settlement Commissioner, Lahore V. Raja Muhammad Fazil Khan and others (PLD 1975 SC 331). On no principle, known to the Constitutional jurisdiction, the power of the Tribunal to adjudicate a matter within its jurisdiction could be pre-empted by the High Court in the words in which it has been done. The Custodian of the record is the best judge in the first place to determine the veracity, the correctness and the genuineness of its own record. It should have been given an opportunity to discharge its duty in that respect. It is only then that a review of the adjudication could have taken place in the High Court.

We accept the appeal, set aside the judgment of High Court, recall the writ and allow the Deputy Settlement Commissioner to proceed with the determination of the allegations made in the Application in accordance with the law applicable. No order as to costs.”

12. The Member (Judicial-V), Board of Revenue / Chief Settlement Commissioner / Administrator (Residual Properties) / Notified Officer, Punjab in paragraph Nos.12 to 14 of the impugned order has discussed in detail the aforesaid issues and rightly observed as under:

12. I have heard the arguments of the learned counsels for the parties and perused the relevant record. I repeatedly directed the learned counsels for Agha Muzamil Khan and others to provide the copy of so called attorney deed but he avoided to comply with the

direction of this court. I have examined the alleged judgment and decree dated 26.11.1948, alleged sale deed dated 15.02.1949, mutation No.198 dated 09.07.1956 and alleged orders of Deputy Custodian and Custodian dated 17.01.1951 and 23.12.1951. With due respect, I have gone through the proceedings initiated between the parties in the superior courts. I would like to conclude each issue through separate findings. Now, I take up the alleged judgment and decree dated 26.11.1948 in respect of the land of Mauza Rakh Rai, Tehsil City District Lahore passed against a non-Muslim Inder Singh S/o Keer Singh. The said suit was decided with mutual consent of the parties. The alleged judgment and decree is bogus, ante-dated and has no legal effect on the following reasons:-

- i. According to the report of record keeper of Session Court, Lahore dated 26.01.2002 and 01.04.2009 available in the record, it is quite apparent that the record of alleged judgment and decree dated 26.11.1948 titled as “Nawab Din etc. Vs. Inder Singh” is neither entered in the concerned register nor the said record is available in the record room. Although other decisions from 01.01.1948 to 31.12.1950 are available except the record of above case. These facts are very relevant to this case because the basic document relied upon by the present petitioners is the outcome of fraud and forgery.
- ii. The suit No.163/48 was filed on 05.11.1948 after partition against Inder Singh (evacuee) through Rajab Ali Shah s/o Syed Imam Ali Shah and Syed Shabbir Hussain s/o Syed Inayat Shah. It is pertinent to mention here that after partition of the sub-continent on 14.08.1947 the alleged owner of the said land Inder Singh migrated to India and the evacuee land vested to the Custodian of the evacuee properties. Thereafter, it became part of the compensation pool constituted under the provisions of Displaced Persons (Land Settlement Act) of 1958. In the said suit, the notices served to the evacuee owner through his so call attorney. It is well settled law that after partition of Sub-continent no suit could be filed against the evacuee without prior permission of the Custodian even no attorney could act on behalf of the evacuee after partition, unless such attorney was approved by the Custodian of the evacuee properties.
- iii. From the perusal of the alleged judgment and decree, it reveals that the said judgment and decree was regarding the land of Mauza Rakh Rai only and not about Mauza Rai but the revenue field staff while sanctioning the alleged mutation No.198 implemented the alleged judgment and decree in Mauza Rai. It is pertinent to mention here that mutation No.74 was registered in concerned Mauza Rakh Rai on 31.11.1951 which was subsequently cancelled on 08.01.1955.
- iv. As per notification dated 03.03.1948, no transaction could be made without approval of Custodian of evacuee properties but as per decree sheet no approval was obtained from the said authority.

- v. From the perusal of aforementioned facts, it is quite evident that the alleged decree is bogus, ante-dated and non-existent under the law. As regard the contention of successor-in-interest of Anwar Khan that the alleged sale deed dated 15.02.1949 was executed by Senior Sub-Judge, Lahore, in pursuance of judgment and decree dated 26.11.1948, the relevant record was examined and it was found that the alleged sale deed is bogus and ante-dated which is quite evident from the following reasons:-
- a) As the alleged judgment and decree is bogus one, therefore, the subsequent sale deed was also non-existent under the law.
 - b) Since the land was transferred to Central Government after partition and Inder Singh the alleged evacuee migrated to India, no deed could be executed through power of attorney of Inder Singh as the land was under the ownership of Central Government on 15.02.1949 and Rajab Ali Shah etc. were not attorneys for Settlement Department. Hence, if any document was executed by Rajab Ali it has no legal existence/effect.
 - c) No original power of attorney of Inder Singh has been produced in any court of law as well as before this court till this date.
 - d) As per copy of decree sheet consideration was Rs.5000/- but alleged sale deed was executed against consideration of Rs.33,000/- which is obvious contradiction.
 - e) As per decree sheet only Nawab Din and Wajid Ali were plaintiffs of the suit but the sale deed was executed against the persons named Fazal Din, Nawab Din, Haji Siraj Din, Miraj Din, Muhammad Shafi, Wajid Ali and Anwar Khan which is beyond the scope of the alleged decree.
 - f) The alleged decree is regarding Mauza Rakh Rai but in alleged sale deed 362-acres of Mauza Rai and 52-acres of Mauza Rakh Rai have been included in the sale deed.
 - g) No area of Khewat, Khatuni and Khasra Nos. were mentioned in the bogus decree sheet but Khata No.31, 32, 44 of Mauza Rai and Khata No.19, 22, 23 of Mauza Rakh Rai are mentioned in the alleged sale deed.
 - h) The alleged decree was implemented vide mutation No.198 in Mauza Rai with Khewat No.3, 36, 37 for the area more than 1900 kanals but in the sale deed of same decree other khatas No.31, 32 & 44 of Mauza Rai and 19, 22, 23 of village Rakh Rai are also included fraudulently.

13. The contention of the counsel for the petitioners Agha Muzamil Khan is that mutation No.198, dated 09.07.1956 had been sanctioned on the basis of the said judgment and decree for khewat No.3, 36, 37 in favour of Nawab Din, Wajid Ali, Siraj Din, Miraj Din, Muhammad Shafi and Anwar Khan is totally incorrect. The alleged mutation No.198 shown to have been sanctioned on 09.07.1956 in

favour of Nawab Din and others is bogus and fabricated which is quite apparent for the following reasons:-

- i. The mutation was sanctioned on the basis of alleged judgment and decree dated 07.03.1949 passed by Senior Sub Judge, Lahore in case titled Nawab Din & Wajid Ali Vs. Inder Singh but as per copy of alleged decree produced by the successors-in-interest of Nawab Din etc., the date of order was 26.11.1948 and not 07.03.1949 in case titled Nawab Din, Wajid Ali Vs. Inder Singh. It is obvious that alleged mutation was related to decree of some other person and it has no concern with alleged bogus and fabricated decree.
- ii. The mutation was sanctioned on the basis of a forged and ante dated decree, therefore, no sanctity can be attached to such mutation. According to the judgments of superior courts, the mutation is not a title document and right conferred by the mutation, in case of any objection on the mutation, the burden of proof lies upon the beneficiaries to prove said transaction as valid.
- iii. The bogus decree dated 26.11.1948 was regarding Mauza Rakh Rai but the alleged mutation was written in Mauza Rai beyond the scope of the decree as Rai and Rakh Rai were two different and distinct villages at that time and still they are two different villages.
- iv. The mutation No.198 has been shown to be entered on 05.11.1951 and checked by Girdawar on 28.12.1951 but it is attested by the Revenue Officer on 09.07.1956 including Khewat Nos.3, 36, 37 (52K. 17M) but no reason has been given as to why that mutation was kept pending for more than five years without any decision. Under the provisions of Land Revenue Laws as well as the provisions of Land Record Manual, the Revenue Officer was duty bound to decide the said mutation within stipulated period. The above conduct proves the said mutation as bogus and ante-dated as well as result of fraud on the part of the beneficiaries with connivance of revenue field staff.
- v. No "Part Sarkar" of said mutation is available in the concerned record room which clearly shows that the alleged mutation has no factual existence. The Revenue Officer/AC-II was under legal obligation to pass the order on "part sarkar" as well as on "part Patwar". The record of "part Sarkar" is always maintained in the office of District Collector's Record Room.
- vi. Neither description of land is mentioned in the alleged mutation nor detail of khasra numbers has been given which is quite necessary under the law.
- vii. The alleged mutation was sanctioned from the name of Inder Singh, Nawab Din etc. for khewat Nos. 3, 36, 37 for more than 1900 kanals but as per revenue record the ownership of Inder Singh S/o Keer Singh in Khewat No.3 was 52-kanals 17-marlas only, whereas khewat no.36 was owned by Inder Kor and the area of said Khewat was 1-kanal 6 marlas only. It is pertinent

- to mention here that khewat No.37 was also owned by Narain Kor etc. and the total area of said khewat was 8 kanals 11 marlas and not owned by the Inder Singh as is evident from the revenue record for the year 1959-60. Hence the total area of three khewats was 61-kanals 13-marlas only. Therefore, it was not possible to transfer land measuring 1900-kanals in favour of Nawab Din and others when the said person was owner of land measuring 52-kanals 17-marlas only.
- viii. No total area of mutation is mentioned on mutation No.198. However, from khewat Nos.36, more than 1800-kanals has been shown to be transferred while the total area of khewat was 1-kanals 6-marlas and even Inder Singh was not owner of said Khewat.
 - ix. The alleged mutation was sanctioned on 09.07.1956 wherein it is shown that this mutation of sale was sanctioned on the basis of order of the court but in prescribed column No.13 of mutation, no details/reference of any such order was given. Moreover, column No.14, which is relating to payment of prescribed fee of mutation is left blank which is evident that no mutation fee was paid and without payment of fee the mutation has no legal sanctity.
 - x. As per copy of alleged decree, on the basis of which, this mutation was sanctioned, only Nawab Din and Wajid Ali were shown as plaintiffs but name of Siraj Din, Miraj Din, Muhammad Shafi, Anwar Khan are also incorporated in the mutation No.198 beyond the scope of the alleged decree. It is mentioned on the left bottom corner of the said mutation that Nawab Din and Miraj Din were plaintiffs in the case. Hence, the names of persons i.e. Sirja Din, Miraj Din etc. could not be incorporated in the mutation beyond the scope of above mentioned bogus decree.
 - xi. The cutting, overwriting and manipulation with different hand writing and different inks are quite apparent on the surface of said mutation.
 - xii. A copy of sale deed No.229, dated 15.02.1949 was reported to be represented to be executed by Sub-Registrar in compliance of the court order dated 26.11.1948 but there is no reference of such sale deed in the said mutation.
 - xiii. It is worth mentioned here that vide mutation No.571, dated 02.12.1975, the entire land of khata Nos. 1 to 13, 18, 19, 20, 21, 22, 29, 32, 33, 34, 35, 36, 37, 38, 39, 40, 41, 42, 43, 44, 45, 46, 47, 48, 49, 50, 51, 52, 53, 54, including khewat No.3, 36, 37 was confiscated and transferred in favour of Central Government. Due to the above mentioned reasons, the mutation No.198 is void ab-initio and has no legal effect in the eyes of law.
 - xiv. As regard the question of the implementation of alleged sale deed vide mutation No.209 in village Rakh Rai, the alleged mutation is also bogus and ante-dated which is quite evident for the following reasons:-

- a) Mutation No.209 is entered but never sanctioned by the competent authority despite the laps of more than 50 years.
- b) Mutation No.209 is entered on the basis of sale deed No.229 dated 15.02.1949 which was executed on the basis of decree dated 26.11.1948. As the basic decree as well as subsequent sale deed is bogus and ante-dated, therefore, the alleged mutation has no legal value and is liable to be ignored.

14. The alleged orders of Deputy Custodian and Custodian dated 17.01.1951 and 23.12.1951 respectively produced by Agha Muzamil Khan and others are also forged, bogus and fabricated, which is quite evident for the following reasons:-

- i. From the perusal of available record, it reveals that as per the report of record keeper concerned dated 06.04.2009, the alleged orders are bogus, ante-dated, and fabricated. For further satisfaction of the parties, a fresh report was also called from the concerned official who again reported that the alleged orders are non-existent and no record pertaining to the alleged orders is available, as per his office record.
- ii. No record of judicial file pertaining to the above orders of Custodian and Deputy Custodian is available in the record room.
- iii. The alleged order is shown to be passed on 23.12.1951. The said date was weekly holiday of Sunday, therefore, there was no question of passing orders on the said date.
- iv. As per file, litigation with regard to this property remained pending for long time but Agha Muzamil Khan and others did not produce the said orders and no reference of alleged orders was ever given at any stage. The said orders were first time brought into light when matter was taken up before the august Supreme Court of Pakistan which clearly indicates that this is an afterthought and said orders were prepared ante-dated.
- v. The said orders shown to have been passed on the basis of decree dated 26.11.1948, when the decree is bogus and non-existent then the order of Deputy Custodian has no force under the law.
- vi. The alleged mutation No.198 was entered on 05.11.1951 whereas it was sanctioned on 09.07.1956 and the matter remained pending for five years before the revenue field staff. But no reference of alleged orders was ever given in the said mutations.
- vii. In the year 1962 Consolidation Operation was started and the land in dispute throughout remained in the ownership of Central Government in the revenue record and no separate wanda of alleged persons was ever made in the consolidation proceedings and even they never challenged the consolidation operation, therefore, the alleged orders were obviously forged and ante-dated.

In view of the aforesaid facts and circumstances of the case, the Chief Settlement Commissioner/Notified Officer, after minutely perusing the record and hearing the parties, rightly passed the impugned order which does not require any interference. Learned counsel for the petitioner could not controvert the findings given by the Chief Settlement Commissioner through any trustworthy, corroborative documentary evidence.

13. As regard to the claim of petitioners (in Writ Petition No.35-R/2014, Writ Petition No.36-R/2014, Writ Petition No.69-R/2015 as well as the applicants in C.M. No.1/2019 [application under Order I Rule 10 C.P.C] who claims to be the subsequent bona fide purchasers of the land in question is concerned, suffice it to say that admittedly they derived alleged right from their vendors and subsequent purchasers only stepped into shoes of their vendors and are debarred to claim any independent better title than that of their vendor and they (subsequent purchasers) have no protection under Section 41 of Transfer of Property Act and if any infirmity, deficiency or flaw subsequently emerges in the title of owner / vendor that shall always travel with the land and subsequent purchasers are precluded to raise plea of protection of bona fide purchaser under Section 41 of the Transfer of Property Act. Reliance can be placed on the case titled as Muhammad Yamin and others Vs. Settlement Commissioner and others (1976 SCMR 489) and Talib Hussain & Others Vs Member, Board of Revenue & Others (2003 SCMR 549). As the alleged title in favour of Anwar Khan, Wajid Ali etc. has been declared illegal, as such, subsequent purchasers have to soar and sink with their vendor and they are debarred to claim any better title. They may trace their legal remedy against the vendors of the same from whom they purchased the land.

14. Learned counsel for the petitioners has failed to point out any perversity, illegality, irregularity or any jurisdictional defect in the impugned order calling for any interference by this Court in its constitutional jurisdiction.

15. In view of the above, these Writ Petitions are devoid of any merit and same are hereby **dismissed** with cost of Rupees one million to be recovered from petitioners of Writ Petition No.88-R/2013 as arrears of land revenue. The Office is directed to transmit copy of this order to the Revenue Office concerned for strict compliance as per law. So far as the application (C.M.No.1 of 2019) under Order 1 rule 10 CPC is concerned, suffice it to say that as the main Writ Petition has been dismissed as such for the same reasons, this application under Order I Rule 10 C.P.C is hereby dismissed being devoid of any merits.

(Ch. Muhammad Iqbal)
Judge

Announced in open Court on 24.12.2021.

Approved for reporting.

Judge